UNIT 11 · TERM 3 · WEEKS 31–33

Law

"Law answers questions of governance and never a question of doctrine. It is ordered to teaching: where it presupposes a teaching, the teaching must hold."

The kind of answer: enacted · Law on the map

In a child's words. Rules are for running things well. They do not decide what is true about God, and a good rule rests on something true.

The Institute habit

"No rules", with rules everywhere; and the Waiting Room, a punishment taken blindfold, with no hearing and no measure. This unit's essay holds the line Mr. Curtain never kept: a penalty without a delict is not law.

The book

The prison, the children's escape, and S.Q. Pedalian finally refusing an order.

Week 1 · the kind of answer

Write the house rules down. For each one, say what it governs and what teaching it presupposes ("We do not lie to each other" presupposes that lying is wrong). Then write a preamble, and one sentence on where its authority comes from.

Week 2 · the essay

A Plate of Ice, in the register of Abraham Joshua Heschel, once a parent has read it. Ask what kindness would have looked like at the moment the guard handed over the ice, even under the rules. If you set it aside, take one line from On a People That Made Itself instead: of the people's part in authority, "They determine. They do not create."

Week 3 · the case

When does a law begin to bind? A universal law of the Church takes force three months after the date of the issue of the *Acta Apostolicae Sedis* that prints it (c. 8 §1). Compute it: an issue of 29 November 2023

gives 29 February 2024, a leap year. An issue of 30 November 2023 gives 1 March 2024, because February has no 30th. An issue of 29 November 2022 gives 1 March 2023. Then the second rule: a law is never used to settle a question of doctrine.

The end first

Law is defined by its end: an ordinance of reason for the common good (I-II q. 90 a. 4). The whole law hangs on two commandments (Mt 22:40): Augustine reads "hang" as end, a homily as summary. Take the ends away and law still binds, but only as Hobbes has it, "not Counsell, but Command" (*Leviathan* 26). The Code ends on its own end, the salvation of souls (c. 1752).

Fridays

A team problem: find a rule in the book that its makers said was not a rule, and a punishment given without a hearing.

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